**IN THE NATIONAL COMPANY LAW TRIBUNAL**
**ALLAHABAD BENCH**

**CP (CAA) NO.13/ALD/2021**
connected with
**CA (CAA) NO.15/ALD/2021**

In the matter of
The Companies Act, 2013
And
In the matter of Sections 230-232, Section 66 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016
And
In the matter of

**AJAY REALTECH (INDIA) PRIVATE LIMITED,** having CIN U70102UP2012-PTC048910 and having its registered office situated at 7th Floor, Plot No. 01B Sector-126, Noida, Gautam Buddha Nagar UP 201303

**TRANSFEROR COMPANY NO.1 / APPLICANT COMPANY NO.1**

And

**GOODLY DEVELOPERS PRIVATE LIMITED,** having CIN U70200UP2010-PTC141113 and having its registered office situated at 7th Floor, Plot No. 1B Sector-126, Noida, Gautam Buddha Nagar, UP - 201303

**TRANSFEROR COMPANY NO.2 / APPLICANT COMPANY NO.2**

And

**STAR LANDCRAFT PRIVATE LIMITED,** having CIN U70102UP2012-PTC053874and having its registered office situated 7th Floor, Plot No. 01/B Sector-126, Noida, Gautam Buddha Nagar, UP-201303 .

**TRANSFEREE COMPANY / APPLICANT COMPANY NO.3**

AND
their respective Shareholders and Creditors

**Order reserved on: 29.11.2021**
**Order pronounced on: 06.12.2021**

***Coram:***

**Shri Rajasekhar V. K.** : **Member (Judicial)**
**Shri Virendra Kumar Gupta** : **Member (Technical)**

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***Counsel on Record for the petitioners:***
Mr. Krishna Dev Vyas, Advocate

## ORDER

***Per: Rajasekhar V.K., Member (Judicial)***

1. The Present Joint Company Petition is filed by Petitioner Companies under Sections 230 and 232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 for sanction of Scheme of Amalgamation of ***Ajay Realtech (India) Private Limited*** *(Transferor Company No.1/Petitioner Company No.1)*, ***Goodly Developers Private Limited*** *(Transferor Company No.2/Petitioner Company No.2) and* ***Star Landcraft Private Limited*** *(Transferee Company/Petitioner Company No.3)* and their respective Shareholders and Creditors **(*hereinafter referred to as "Scheme" or "Scheme of Amalgamation"*)**.

2. The Petition has now come up for final hearing. Ld. Counsel for the petitioners submits as follows:-

   **(a)** The proposed 'Scheme of Amalgamation' has previously been approved by the Board of Directors of the Petitioner Transferor Companies and the Petitioner Transferee Company in their respective Board meetings held on 09.04.2021.

   **(b)** The factual position of the Authorized, Issued, Subscribed and Paid up share Capital of the Petitioner Companies as on 31st March, 2020 is described in the present Company Petition.

3. The rationale of the proposed Scheme of Amalgamation is elaborately described in the present Company Petition which may be summarised as under :-

   **(a)** For the optimum running, growth and development of the business and undertakings of the Transferor Companies and the Transferee Company with their combined resources and a larger capital and asset base, it is considered desirable and expedient to amalgamate the Transferor Companies with the

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Transferee Company in the manner and the terms and conditions stated in this Scheme of Amalgamation.

**(b)** The amalgamation will enable appropriate consolidation and integration of the activities of the Transferor Companies and the Transferee Company with pooling and more efficient utilization of their resources, reduction in overheads and other expenses and improvement in various other operating parameters. The amalgamation will result in the formation of a larger and stronger entity having greater capacity for conducting its operations more efficiently and competitively. The Scheme is proposed accordingly and will have beneficial results for the Company, their shareholders, employees and all concerned.

4. The Petitioners have stated that the accounting treatment proposed in the Scheme of Amalgamation is in conformity with the Accounting Standards prescribed under Section 133 of the Companies Act, 2013 as certified by the Auditors of the Petitioner Companies.

5. It has also been stated in the Petition that no proceedings under Sections 235 to 251 of the Companies Act, 1956 or under Sections 210 to 226 of the Companies Act, 2013 are pending against any of the Petitioner Companies.

6. It has also been stated in the Petition that the Scheme is not prejudicial to the interests of the Shareholders and Creditors of the Petitioner Companies and the Petition is made bona fide and is in the interest of all the Petitioner Companies and their respective Shareholders and Creditors as a whole and is just and equitable.

7. A perusal of the present Petition discloses that initially the Petitioner Companies had filed CA (CAA) No.15/ALD/2021 seeking directions of this Tribunal to dispense with the requirement of convening meetings of Equity and Preference Shareholders, Secured Creditors and Unsecured Creditors of the Petitioner Transferor Company No.1, Petitioner Transferor Company No.2 and the Petitioner Transferee Company. Accordingly, this Tribunal *vide* its Order dated 5th August, 2021, dispensed with the requirement of convening meetings of

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Equity and Preference Shareholders, Secured Creditors and Unsecured Creditors of each of the Petitioner Companies.

8. This Tribunal *vide* its Order dated 13th August, 2021 directed issue notice of hearing in respect of present Company Petition to the Statutory Authorities and also to effect paper publication in respect thereof in English and Hindi Editions of *Business Standard* newspaper, having circulation where registered office of the Petitioner Companies is situated. In compliance thereof, the Petitioner Companies on 27th November, 2021 have filed Affidavit of service and publication, compliance with publication requirements and also service of copies of the petition upon – (a) the Central Government through the office of the Regional Director (Northern Region), Ministry of Corporate Affairs, New Delhi; (b) the Registrar of Companies, Uttar Pradesh, Kanpur; (c) the Official Liquidator, Allahabad; (d) the Income-Tax Departments having jurisdiction over the Petitioner Companies.

9. Pursuant to the said advertisements and notices, the Regional Director (Northern Region), Ministry of Corporate Affairs, New Delhi received a Report from the Registrar of Companies, Uttar Pradesh, Kanpur and filed its representation on 22nd September, 2021 through an affidavit whereof the Regional Director in his report stated that the transferor companies and the transferee companies have filed the Balance Sheets and Annual returns and no prosecution has been filed and no inspection or investigation has been conducted in respect of the petitioner companies.

10. The Official Liquidator, High Court, Allahabad, has also filed his report dated 09-09-2021, stating that he has objection to the dissolution of the transferor companies without winding up.

11. The Income-Tax Department has not filed any representation within 30 days of service of the notice of the Petition. Hence, pursuant to Section 230(5) of the Companies Act, 2013 read with Rule 8(3) of the Companies (Compromises,

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Arrangements and Amalgamations) Rules, 2016, it is presumed that the Income-Tax Department has no objection on the Scheme of Amalgamation of the Petitioner Companies.

12. We have gone through the reports of the Ld. Regional Director (Northern Region), Ministry of Corporate Affairs, New Delhi, Registrar of Companies, Uttar Pradesh, Kanpur and the Official Liquidator, Ministry of Corporate Affairs, Allahabad, Uttar Pradesh. We find that there is no reservation to grant sanction to the Scheme.

13. In the result, the proposed Scheme of Amalgamation, which is annexed to the Company Petition stands approved and sanctioned. The Petitioner Companies are required to act upon as per terms and conditions of the sanctioned Scheme and the same shall be binding on all the Shareholders, Secured Creditors and Unsecured Creditors of the Petitioner Companies and also on the Petitioner Companies with effect from the Appointed Date, *i.e.,* 1st day of April, 2020.

14. While approving the Scheme as above, it is clarified that this order should not be construed as in any way granting exemption from payment of stamp duty (if any, is applicable), taxes (including Income Tax, GST or any other charges, if any, are applicable) and payment in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required under any law. Also, the Petitioner Transferor Company No.1 and Petitioner Transferor Company shall stand dissolved without undergoing the process of winding up.

15. The Petitioner Companies shall within thirty days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies, Uttar Pradesh for registration.

16. All the concerned Regulatory Authorities to act on a copy of this order annexed with the Scheme duly authenticated by the Registrar of this Bench.

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17. Leave is granted to the Petitioners to file the Schedule of Assets of the Transferor Company in the form as prescribed in the Schedule of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 within three weeks from the date of receiving a copy of this order;

18. Urgent certified copy of this order, if applied for, be supplied to the parties, subject to compliance with all requisite formalities.

19. Company Petition (CAA) No. 13 /ALD/2021 is disposed of accordingly.

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**Virendra Kumar Gupta**
**Member (Technical)**

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**Rajasekhar V.K.**
**Member (Judicial)**

*Swati Gupta*
*(LRA)*